

CROWN ASSET MANAGEMENT, LLC v PINEDA

25CF14979

PLAINTIFF'S MOTION TO DEEM REQUESTS ADMITTED

This civil action arises from a contract between Blue Ridge Bank ("Original Creditor") and Defendant John Pineda ("Defendant") concerning a loan account, which Plaintiff Crown Asset Management, LLC ("Plaintiff") purchased from Original Creditor. Before the Court is Plaintiff's motion seeking to have the Court for an order deeming admitted the truth of facts in the unanswered Request for Admissions ("RFA") served on Defendant. Plaintiff also requests sanctions.

I. Factual and Procedural Background

A. Background Facts

Plaintiff is a debt buyer and is the sole owner of the debt at issue. (Complaint ¶¶ 1, 3.) On or about November 22, 2022, Original Creditor extended a loan to Defendant, account number ending in 4280 ("Account"). (*Id.* ¶ 2.) The debt balance at charge-off was \$11,522.77. (*Id.* ¶ 4.) There have been no post charge-off fees or interest charged since the time of charge-off. (*Ibid.*) The date of last payment on the Account was on February 27, 2023. (*Id.* ¶ 5.)

Plaintiff brings causes of action for: 1) breach of contract and 2) money lent, paid, or expended. Defendant appeared in this matter on March 7, 2025.

B. Discovery and Responses

On May 21, 2025, Plaintiff prepared and served Defendant with Plaintiff's Request for Admissions, Set No. One. (Declaration of Eric Marquez ("Marquez Decl.") ¶ 3. Ex. A.) The time for responses to be served was end of day June 25, 2025. (*Id.* ¶ 4.) On August 15, 2025, Plaintiff's counsel sent a "meet and confer" letter to Defendant requesting that Defendant respond for the first time to Plaintiff's discovery on or before September 9,

2025. (*Ibid.*, Ex. B.) At the time of the filing of Plaintiff's motion on November 10, 2025, no responses had been provided.

II. Legal Standard and Discussion

Pursuant to Code Civ. Proc. section 2033.280, if a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).)

A party moving to compel initial responses under this section is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Plaintiff served Defendant with RFAs on May 21, 2025. Defendant has not responded to the RFAs or to Plaintiff's meet and confer letter, has not responded to Plaintiff's counsel, and has not filed an opposition.

Accordingly, Plaintiff's motion to deem the facts admitted is **GRANTED**.

D. Sanctions

Sanctions for failure to timely respond to RFAs are mandatory. (Code Civ. Proc. § 2033.280(c).) Defendant has failed to provide the actual documents requested and accordingly, sanctions are warranted.

Plaintiff requests sanctions in the amount of \$60.00. Plaintiff's request for sanctions is **GRANTED**. Defendant is to pay plaintiff \$60.00 by 5:00 p.m. on January 7, 2026.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Proposed Order.